

Form Filing Checklist

Private Passenger Auto Forms

To help facilitate and expedite the review and approval of private passenger auto form filings, the Florida Office of Insurance Regulation (OIR) provides this checklist as a resource. This checklist includes statute and rules that apply to private passenger auto forms **but may not contain all of the requirements** for a private passenger auto form filing. Please refer to the cited statutes and rules for instructions and guidance.

Companies can complete this checklist when making a private passenger auto filing and upload this document as a part of the form filing.

Statute/Rule	Topic	Comments	Yes	N/A	Form #	Page #
626.752(1)(b) & (3)(b),(c),(d)	Applications	If applicable, must follow exchange of business requirements		X	No Applications in this Filing.	
627.4085(1)		Must disclose the name and license number of the agent		X		
		Must prominently display the name of the insuring entity on the first page (typed, printed, stamped, or legibly handwritten)		X		
627.409 690-167.005		Statements made by insureds in applications are representations, not warranties. Warranties by insured are not allowed		X		
627.410(1)		The application must be filed if it is to be made part of the policy/contract of insurance		X		
626.9741(3) 690-125.004(3)(c)		An insurer must include a notice to the consumer that a credit report or score is being requested for underwriting or rating purposes with the language required by the statute.		X		
817.234(1)(b)		All application forms must contain the fraud statement		X		
626.752(3)(e)		Brokering Agents Requirements – exchange of business		X		

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627.421		Affirmative election by policyholder of electronic delivery of policy documents	X		N/A	N/A
<i>Sec. First Ins. Co. v. State, Office of Ins. Regulation</i> , 177 So. 3d 627 (Fla. 1 st DCA 2015)	Assignment of Benefits	Cannot prohibit an insureds post loss right to assign benefits	X		9810C	52
<i>United Insurance Co. v. Office of Insurance Regulation</i> , 985 So.2d 665 (1 st DCA 2008) 624.155	Arbitration	This dispute resolution process cannot be mandatory in insurance contracts	X		9810C	54
627.4205	Binders	Coverage identification number required		N/A	No Binders in this Filing	
627.420		5 days' notice required for cancellation		N/A		
324.0221(1)(a)	Cancellation Notices	Cancellations should be reported to the Department of Highway Safety within 10 days		N/A	No Cancellation Notices in this Filing.	
324.0221(1)(b) & (3)		Shall inform insured of notice to the Department of Highway Safety; must also inform insured that failure to maintain PIP and Property Damage liability can result in loss of driving privileges and amounts of reinstatement fees (second part not required for Motorcycles)		N/A		
626.9741(3)		Notification to insured if adverse decision was based on credit		N/A		
627.728(3)(a)		Advance written notice of at least 10 days for nonpayment		N/A		
627.728(3)		Advance written notice of at least 45 days for reasons other than		N/A		

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		nonpayment				
		Must include reason(s) for cancellation		N/A	No Cancellation Notices in this Filing.	
627.728(6)		Florida Automobile JUA Notification required (except in cases of cancellation for nonpayment)		N/A		

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627.728(7)		Right to appeal cancellation except for nonpayment; must be prominently displayed		N/A	No Cancellation Notices in this Filing.	
627.7283(1) & (2) 69O-167.001		Return of premium within 30 days after cancellation if insured cancels and within 15 days if insurer cancels		N/A		
627.728(12)	Cancellation Notice to Lienholder	Required to be sent in 10 business days or less after termination	X		No Cancellation Notices in this Filing.	
627.7283(4)	Cancellation Provisions	Short rate is 90% of pro rata if insured cancels; insurer must refund 100% in case of insurer cancellation and servicemembers in certain cases	X		9810C	52
627.7295(4)		Carrier cannot cancel during first thirty (30) days for nonpayment unless there is a dishonored check or other payment method not honored	X		9810C	51
790.338(7)		May not deny coverage, increase premium, or otherwise discriminate due to lawful ownership or possession of or lawful use or storage of a firearm or ammunition.		X	No Exclusion.	
626.9541(1)(g)4.a.		Limitations on disclosure of lawful use, ownership or possession of firearms.		X	No Exclusion.	
69O-170.010(1) & (3)		The inclusion of fully earned premium provisions in insurance contracts or endorsements is prohibited (see rule for exceptions)		N/A		
627.7295(3)		An insured may not cancel in the first two months except for specific reasons	X		9810C	51
627.728		Company can cancel for any reason other than nonpayment within the first 60 days	X		9810C	51
627.728(2)		Limited reasons for cancellation after the policy is in effect for 60 days	X		9810C	51

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Statute/Rule	Topic	Comments	Yes	N/A	Form #	Page #
627.728(1)	Cancellation, void policy	Curing opportunity for dishonored checks representing initial premium payment within the earlier of 5 days after actual notice by certified mail is received by the applicant or 15 days after notice is sent to the applicant by registered or certified mail	X		9810C	51
627.4265	Claims	Required to be paid within 20 days from the time a person and insurer have agreed in writing to the settlement of a claim	X		N/A	N/A
626.9743(9)		Company's option to defer payment of sales tax	X		N/A	N/A
627.745 690-176.022	Claims - Mediation	Either party may demand mediation in claims for bodily injury under \$10,000 or property damage in any amount; policy shall specify in detail the terms and conditions for mediation of a first-party claim	X		9810C	54 -55
624.425	Declarations	Policy must be signed by Florida licensed agent		X	624.426(5) – Exemption for company with exclusive agency force.	
627.413	Declarations Page & Contents of Policy	Every policy shall specify: parties to the contract, subject of the insurance, risk insured against, effective date and time, the premium, conditions and form numbers of all endorsements attached to the policy	X		Declarations & Policy	1
627.7288	Deductibles	No deductible for windshield under comprehensive coverage	X		9810C	51
627.421	Delivery of policy	Policy must be mailed, delivered, or electronically transmitted no later than 60 days after effectuation of coverage	X			
626.9743(3) & (4)	Designated Repair Shops & Replacement Parts	Requirements to go to a specific repair facility; may not require replacement parts that are not at least of equivalent kind/quality	X			

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627.736 , 627.727 , 627.7275 , 324.022 & 324.151	Driver Exclusion	Must include a statement that the excluded driver must maintain financial ability to respond to damages resulting from the operation, maintenance or use of a motor vehicle	X		2023U	1
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627.7295(5)	Fees - Automobile	\$10 per policy in certain situations; fee is not part of the premium		X		
324.151(1)	Financial Responsibility Required Language	Policies shall contain an agreement that insurance is provided in accordance with the coverage defined in Chapter 324 as respects bodily injury and death or property damage or both and is subject to all provisions of this chapter	X		9810C	5
		Policies shall contain a provision that the satisfaction by an insured of a judgment for such injury or damage shall not be a condition precedent to the right or duty of the insurance carrier to make payment on account of such injury or damage	X		9810C	5
		Policies shall also contain a provision that bankruptcy or insolvency of the insured or of the insured's estate shall not relieve the insurance carrier of any of its obligations under said policy	X		9810C	52
627.4145	Flesch Readability	Every policy shall be readable as required	X		All policy forms attain Flesch Score of 45 or greater.	
627.413(4)	Form Identification	Each form requires unique identifiers	X		All policy forms have unique identification number.	
		Any form change requires identifier change	X			
627.411(1)(g)	HIV/AIDS	May not be singled out as an exclusion		X	No Exclusion.	
627.411(1)(d)	Legibility Required	Must not be printed or reproduced in a manner that makes material provisions illegible				
320.02(2)(a)	I.D. Cards	Not required to be filed with OIR				
627.4145(1)(f)	Index	For readability the policy shall contain an index (or table of contents) of the principal sections of the policy	X		9810C	1

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324.021(7) & 324.021(1)	Motorcycles (automobile policy requirements apply unless there is a conflict with any statute referenced here)	Proof of financial responsibility liability requirements DO apply after accident	X			
627.4133(1)		Nonrenewal 45 days' advance notice	X		9810C	51
627.4133(1)		Renewal premium 45 days advance notice	X		9810C	51
627.727 & 320.01(1)(a)		UM should be offered	X			
627.7281		10 days' advance notice cancellation for non-pay; 45 days for all other reasons	X		2279AP	3
627.7275(1)		\$10,000 PD liability requirements of 627.7275 DO NOT apply since no PIP provided on policy	X			
627.733 & 627.732(3)		No PIP on policy	X		Only PIP for pedestrian	
627.7288	Windshield Glass	Deductible cannot apply to windshield glass	X		9810C	35
627.7275(2)(b)		During the policy period, the amounts for BI, PD, and PIP may not be reduced below the minimum limits required under s. 324.021 or s. 324.023	X			
324.0221(1)(a)	Nonrenewal Notices	Non-renewals should be reported to the Department of Highway Safety within 10 days		N/A	No Nonrenewal Notices are part of this filing.	

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Statute/Rule	Topic	Comments	Yes	N/A	Form #	Page #
324.0221(1)(b) & (3)		Shall inform insured of notice to the Department of Highway Safety; must also inform insured that failure to maintain PIP and Property Damage liability can result in loss of driving privileges and list amounts of reinstatement fees (second part not required for Motorcycles)		N/A	No Nonrenewal Notices are part of this filing.	
627.728(4)(a)		Advance written notice of at least 45 days required		N/A		
627.728(6)		Florida Automobile JUA notification required		N/A		
626.9541(1)(o)3.b.		Notification to insured that in the event of an accident, they will not be non-renewed if any of these items can be proven		N/A		
626.9741(3)		Notification to insured if adverse decision was based on credit		N/A		
627.728(4)(a)		Advance written notice of at least 45 days required		N/A		
627.728(4)(a)		Must contain reason(s) for nonrenewal		N/A		
626.9541(1)(o)3.c. & 4.		Provides circumstances for nonrenewal and establishes reasons why an insurer cannot refuse to renew		N/A		
626.9541(1)(g)4.a.		No nonrenewal based on lawful use, possession, or ownership of a firearm or ammunition by the insured or a household member of the insured		N/A		
627.7282 69O-167.002	Notice of Additional Premium	Notice of insured's options required when additional premium has been determined	X		9810C	50

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627.43141	Notice of Change in Policy Terms	Required written notice if renewal contains a change in policy terms (only template is subject to OIR review and approval- not fully completed form)	X		9810C	51
		Such notice shall be entitled "Notice of Change in Policy Terms"	X		Every Notice has unique number	1

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Statute/Rule	Topic	Comments	Yes	N/A	Form #	Page #
627.4143	Outline of Coverage	Not subject to OIR review or approval				
627.7483	Peer to Peer Car Sharing	Cannot exclude as passenger, contains statutory definitions		X	Insured as passenger Not excluded.	
627.7276	Physical Damage Only Policy	Statement of no bodily injury and liability required		X		
627.736(8)	PIP - Attorney Fee Provision	Section 627.428 applies to PIP	X		9810C	13
627.736(4)	PIP - Benefits Paid	Circumstances under which PIP benefits paid	X		9810C	13
627.736(1)(a)(b) & (c)	PIP - Benefits Required	\$10,000 limit 80% Medical Expenses 60% Work Loss 100% Replacement Services \$5,000 Death Benefit (separate)	X		9810C	13 - 16
627.736(1)(a)3.		Up to \$10,000 for medical expenses if an authorized provider has determined the injured person had an emergency medical condition	X		9810C	13 - 16
627.736(1)(a)4.		Up to \$2,500 for medical expenses if an authorized provider determines the injured person did not have an emergency medical condition	X		9810C	13 - 16
627.736(1)(a)5.		Medical benefits do not include massage and acupuncture	X		9810C	17
627.736(4)		Workers compensation benefits primary	X		9810C	16
627.7311		Clarifies that specific provisions in 627.730-627.7405 shall control over general provisions in a policy form	X		9810C	13
627.736(1)(a)	PIP - Conditions	14-day condition for initial services and care for medical benefits	X		9810C	13
627.736(1)(a)1.		Initial services and care providers- updated 2020	X		9810C	13 - 14

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Statute/Rule	Topic	Comments	Yes	N/A	Form #	Page #
627.736(1)(a)2.		Follow-up services and care providers-updated 2020	X		9810C	14
627.736(4)(b)3.		Partial payment or rejection of claim due to error	X		9810C	16
627.736(4)(i)		Notification of investigation for suspected fraud/ denial or payment of claim	X		9810C	52
627.736(4)(j)		Log of PIP benefits paid	X		9810C	55
627.736(6)(f)		Notification that policy limits reached	X		9810C	16
627.736(4)(e)	PIP - Coverage Description	Defines who is covered under PIP	X		9810C	13
69O-176.005(3)		Policy should provide coverage for an owner while out of state and occupying a motor vehicle owned by a relative if that relative is in compliance with Section 627.733	X		9810C	13
627.732	PIP - Definitions	Definitions exclusive to PIP coverage - general policy definitions may not apply	X		9810C	13
627.739(2)	PIP - Deductibles	Subtract from all loss and expenses before applying the 80% factor	X		9810C	15
627.739(1)(2) & (5)	PIP - Deductible & Work Loss Selection	\$250, \$500, \$1,000 deductibles for named insured or named insured and dependent resident relatives; work loss option	X		9810C & Declarations	15 & 1
627.736(10)	PIP - Demand Letter	Company has 30 days from receipt of demand letter to pay claims	X		9810C	53
627.736(6)(g)	PIP - Examination Under Oath	Insured claiming benefits must submit to an EUO if required; compliance is a condition precedent to receiving benefits The scope of questioning during the EUO is limited to relevant information or information that could reasonably be expected to lead to relevant information	X		9810C	17
627.736(4)(h)	PIP - Fraudulent Claims	Any fraud voids all PIP coverage for the insured person committing the fraud	X		9810C	52

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<i>Vasquez v. Mercury Cas.</i> 947 So. 2d 1265 (2007)		Fraud committed by co-insured will not void the coverage of the innocent co-insured	X		9810C	52
627.736(7)(b)	PIP - Independent Medical Exams	If unreasonably refused by the insured, company no longer liable for subsequent PIP benefits; two failures to appear raises rebuttable presumption that refusal/failure is unreasonable	X		9810C	46
627.7405(1)	PIP- Insurer Reimbursement (Subrogation)	If insured in or struck by commercial motor vehicle, their company can be reimbursed	X		9810C	53
627.7405(2)		Does not apply to owner or registrant of a taxicab	X		9810C	53
627.736(5)(a)1.	PIP- Fee Schedule	Insurer may choose to limit reimbursement according to the fee schedule	X		9810C	15
627.736(5)(a)2. & OIR-12-06M		Fee schedule applies annually from 3/1 through the last day of February of the following year	X		9810C	15
627.736(5)(a)5.		Notice required before using the fee schedule to limit reimbursement	X		9810C & Declarations	15 & 2
627.7401 690-176.013	PIP- Notice Requirements	Notification of insured's rights; use Form OIR-B1-1149	X		N/A	
627.737	PIP- Tort Exemption	Tort exemption except for in cases of significant injury	X		N/A	
324.022	Property Damage Liability	PD liability coverage mandatory	X		Declarations	1
324.151(1)(a)		\$500 deductible allowed but must pay claim as if no deductible	X		N/A	
627.7275(1)		Policies providing PIP cannot be delivered unless they also provide PD liability coverage	X		Declarations	1
627.7277(2)	Renewal Premium Notice	Advanced written notice of 30 days required	X		N/A	
627.7263	Rental and Leasing Driver's Insurance Primary	Lessor's coverage is primary unless otherwise stated on rental agreement	X		N/A	
627.4132	Stacking of Coverage	Stacking of coverage prohibited except for uninsured motorist coverage	X		See "If Other Coverage" provision under each coverage.	

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Statute/Rule	Topic	Comments	Yes	N/A	Form #	Page #
95.11(2)	Statute of Limitations	Action against insurer shall be commenced within five (5) years	X		9810C	15
627.4131	Telephone Number	Telephone number and its purpose required	X		Declarations	1 & 2
627.748	Transportation Network Companies	Property cannot be included within the definition or the exclusion Insureds must be covered as passengers in a non-owned vehicle being operated as a TNC vehicle	X		Insured as passenger Not excluded.	
627.727	Uninsured Motorist	Must offer all UM options at renewal (including Non-stacked if available): 1. Stacked limits equal to bodily injury liability 2. Stacked limits less than bodily injury liability 3. Non-stacked limits equal to bodily injury liability 4. Non-stacked limits less than bodily injury liability 5. Rejection of UM coverage 6. Company required to offer lower limits and rejection of UM limits 7. UM to be equal to BI unless rejected or lower limits selected (at new business or when BI limits have changed)	X		153-7586 FL	4
627.727(1)		Bold statement required on form with exact statutory language	X		SRU FL	1

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<u>627.727(9)</u>		If company has non-stacked UM in their program, must offer this option to insured and provide a description of the provisions of non-stacked on the select/reject form	X		153-7586 FL	4
		UM coverage is stacked unless non-stacked is selected (at new business)	X		SRU FL	2